

Counsel to file Order, and to serve copy of Order, as well notice of the next hearing, on the Defendant.

10. 9:00 AM CASE NUMBER: L25-12704

CASE NAME: CAPITAL ONE, N.A., SUCCESSOR BY MERGER TO DISCOVER BANK VS. ROLANDO SANCHEZ

*HEARING ON MOTION IN RE: NTC AND MTN TO QUASH SERVICE OF SUMMONS AND SET ASIDE DEFAULT AND DEFAULT JUDGMENT

FILED BY: SANCHEZ, ROLANDO

TENTATIVE RULING:

Defendant filed, on 5/27/26, a Motion to quash service of summons, and to set aside the default judgment.

Default was entered on 3/5/26. Default Judgment was filed on 7/30/26.

The Motion is unopposed.

Defendant filed a proof of service indicating mail service on counsel for Plaintiff.

Background

Defendant argues that he did not receive actual notice, and that the judgment should be set aside, under both Sections 473(d) and 473.5 of the CCP.

The proof of service of process, filed on 12/23/25, reflects personal service by a registered process server on 12/19/25, Oakley, CA. The document reflects that the Defendant was approximately 45, lightly complected, salt and pepper hair, and of medium height and slightly heavier weight.

The Defendant, in his Motion, claims that he was in Mexico on 12/19/25, and thus was not actually served. As proof, Defendant attached bank statements that purportedly show purchases made by him in Mexico on and around 12/19/25. Defendant also included an exhibit reflecting a plane ticket from Mexico to Oakland on 12/22/25.

The bank statement, however, does not have any information reflecting the owner of the account.

Defendant also points out that his skin complexion is dark and not light.

Analysis

A defendant can move to quash service of the summons if service of the service is not valid. *Code of Civil Procedure Section 418.10(a)(1)*. A defendant's actual knowledge of the action does not dispense with the statutory requirement of service of the summons. *Kappel v. Bartlett* (1988) 200 CA3d 1457, 1466.

When a defendant moves to quash the summons on the basis of invalid service, "[T]he burden is on the plaintiff to prove ... the fact requisite to an effective service." *Summers*

v. McClanahan (2006) 140 CA4th 403, 413.

A Defendant can also move the court to set aside a default judgment under Sections 473.5 and 473(d) of the Code of Civil Procedure, arguing a lack of actual notice under the former, and improper service in the latter.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.

In the instant matter, since a registered process service claimed to have effected personal service on Defendant, it is the Defendant's burden to show otherwise.

Disposition

The court will hear from the parties on 8/18/26, 9am.

11. 9:00 AM CASE NUMBER: L25-14084

CASE NAME: WELLS FARGO BANK, N.A. VS. MARCELO SANCHEZ

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S
FILED BY: WELLS FARGO BANK, N.A.**

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), as well as a Declaration.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," in Exhibit One to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely